IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-531
CA(CAA No) No- 90/230/232/ND/2020
(1) New CA/136/2021
(2) New CA/832/2020
(3) CA/726/2020

IN THE MATTER OF:
Digilife Distribution and Marketing Service Ltd And HCL Infosystems Pvt Ltd ....**Applicant**

SECTION
U/s 230-232

Order delivered on 23.03.2021

CORAM:
SHRI ABNI RANJAN KUMAR SINHA
HON'BLE MEMBER (JUDICIAL)

SHRI K.K. VOHRA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant : Mahesh Agarwal and Rajeev Kumar Advocates
For the Respondent :

ORDER

CA-832/2020 and ***CA-726/2020:-***

By filing CA-832/2020 and CA-726/2020, the applicant has prayed for early listing of the first motion application. Therefore, both these CAs are disposed off by this common order:-

Since the matter has already been listed today, therefore, both the CAs have become infructuous. Hence, the same are **dismissed being infructuous**.

CA-136/2021:-

By filing this application, the applicant has prayed for amendment in the application filed by applicant regarding the first motion application i.e. **CA-136/2021.**

Khushboo

Heard the Ld. Counsel for applicant and perused the averments made in the application. In course of hearing, we notice that in para 3 of the application, the applicant has mentioned tthe reasons for making the amendment in the application and the reason is "the above mentioned application is pending before the higher bench due to difference of opinion between the Judicial Member and Technical Member on the issue of dispensation of the meeting of shareholder." In our considered view, it is not a ground for permitting the applicant to make amendment in the first motion application filed by the applicant. Therefore, we hereby reject the prayer of the applicant to make necessary amendment in the application of CA-136/2021. **Accordingly, the present application is dismissed.** Since there is difference of opinion between the Members, list the matter on **15.04.2021.**

Sd/-

(K.K. VOHRA)
MEMBER (T)

Sd/-

(ABNI RANJAN KUMAR SINHA)
MEMBER (J)

Khushboo